

CONTRACT

This Contract entered into this 19th day of November 2018 is by and between Brecksville Broadview Heights City School District Board of Education (the “Board”) and Organizational Effectiveness Strategies, Inc. (“OES”).

I. Term

The term of this contract shall begin on November 19, 2018 and end on May 31, 2019.

II. PURPOSE / PRICE

OES agrees to provide the following services to define the Brecksville Broadview Heights City School District (the “District”) strategic direction and business planning process for the next five years:

- Review relevant District data, along with any other assessments deemed necessary to determine current District organizational and programmatic capacities. A summary of this review will be documented and shared with the Board and staff, identifying key focus areas to be addressed by the District.
- Assemble a design committee to ensure that inclusion and communication are effective throughout the process. This committee will provide input and work collaboratively on communication strategies and methods.
- Facilitate two (2) half-day retreats with two (2) facilitators which represent all building and stakeholder groups to review existing District plans, mission and vision as well as draft a SWOT analysis.
- Conduct an external scan to gather reports and data on competitors, state environment and relevant regional economic indicators.
- Conduct interviews and focus groups with key stakeholders if deemed necessary by the steering committee.
- Conduct focus groups at the building level to gain input on vision and key strategic priorities.
- Present to the Board at a meeting in April 2019 a five year strategic plan document.

The Board agrees to provide the following support to OES:

- The Board will actively guide the process including participating in two working sessions to discuss the planning process, mission/vision and strategic priorities.
- The Board’s leadership team will refine priorities, identify key measures and suggest specific actions to support strategies. They will also develop a proposed evaluation and control strategy.

For the above outlined services, the Board agrees to pay OES an amount not to exceed \$18,300. Payment will be made with three (3) payments of \$6,100 each with the first payment due on December 14, 2018 and the other payments due on the 15th of February 2019 and the 15th of April 2019.

III. TERMINATION

This contract may be terminated by the Board upon thirty (30) days written notice to OES, or by either party due to a breach of the contract. In the event of breach, the non-breaching party shall notify the breaching party, in writing, of the breach, and the breaching party shall be granted ten (10) days to cure the breach. If the breach is not cured during this time period, the contract may be immediately terminated, and the breaching party shall be responsible to the non-breaching party for any costs incurred by the party due to the breach.

IV. INDEMNIFICATION

OES hereby agrees to identify and hold harmless the Board, its agents, representatives and employees from and against all claims, damages, losses and expenses arising out of the work to be performed under this Contract, including but not limited to: (1) copyright infringement, (2) bodily injury, illness or death, or for property damage caused in whole or in part by the intentional or negligent act or omission of OES, or anyone employed by or acting on behalf of OES for those acts OES may be liable, and (3) reasonable attorneys' fees.

V. AMENDMENT OF CONTRACT

This Agreement may only be modified in writing, executed by both parties.

VI. GOVERNING LAW

The laws of the State of Ohio shall govern this Contract. Any dispute arising out of this Agreement shall be brought exclusively in a court of competent jurisdiction in Cuyahoga County, Ohio.

VII. AUTHORIZATION

By signing below, the parties warrant that they are authorized to execute this Contract and that the other party may act in reliance of this execution.

By: _____ Date: _____
Brecksville Broadview Heights City
School District Board President

By: _____ Date: _____
Brecksville Broadview Heights City
School District Treasurer

By: _____ Date: _____
Organizational Effectiveness Strategies, Inc.
President